

9.	21CV0266	REINDERS vs. VISMAN et al
Dissolve Preliminary Injunction		

Defendants request the Court to dissolve a preliminary injunction issued in March, 2022, “to serve the ends of justice.” This motion is made pursuant to Code of Civil Procedure §§ 532 and 533, which authorize a court to modify or dissolve an injunction, either for lack of notice or upon a showing of a material change in facts, a change in the law, or that the ends of justice would be served by such dissolution. Specifically, Defendant argues:

[T]he Preliminary Injunction at issue is procedurally defective, substantively unsupported, and inequitable in light of subsequent developments, including the execution of a controlling 2014 easement agreement between Plaintiff and High Hill Ranch, LLC. Specifically, Plaintiffs have secured extraordinary equitable relief by presenting only a partial version of the 2011 Judgment—which forms the undisputed basis of the Preliminary Injunction while also omitting a controlling post-judgment 2014 Easement agreement directly with High Hill Ranch, LLC that materially alters, and effectively invalidates, the enforceability of the 2011 Judgment.

Request for Judicial Notice

Both parties have submitted requests for judicial notice of various judicial filings in the course of litigation between the parties and their predecessors.

Judicial notice is a mechanism which allows the court to take into consideration matters which are presumed to be indisputably true. California Evidence Code Sections 451, 452, and 453 collectively govern the circumstances in which judicial notice of a matter may be taken. While Section 451 provides a comprehensive list of matters that must be judicially noticed, Section 452 sets forth matters which *may* be judicially noticed. A trial court is required to take judicial notice of any matter listed in section 452 if a party requests it and gives the other party sufficient notice to prepare to meet the request. Evidence Code § 453.

Evidence Code § 452(d) permits judicial notice of “records of (1) any court in this state or (2) any court of record of the United States.” Accordingly, both parties’ requests for judicial notice are granted.

Lack of Notice

The 2011 Arbitration Award (“2011 Award”) was initiated to enforce the terms of a 2002 Settlement Agreement between these parties, and was executed on January 26, 2011. Exhibit A of that Award contains most of the Award’s substantive provisions, consisting of 26 pages of findings, analysis and conclusions. Exhibit B of the Award consists of less than one page of

substantive text responding to a request for clarification of the issue of “whether or not the green fence is to be ordered removed from the easement.” The arbitrator concluded that the green fence “is necessary for safety purposes” and “does not constitute an unreasonable interference with Plaintiff’s easement use. . . . Plaintiff’s request for an order seeking removal of the green fence is denied.” That is the full substance of Exhibit B. Defendant’s Request for Judicial Notice, No. 1.

The parties to the arbitration award, including Jerry Visman and George Visman, executed a Stipulation for Confirmation of Arbitration Award on May 10, 2011.

Defendants argue that the omission of Exhibit B of the 2011 arbitrator’s Award from the documents submitted in support of the 2022 preliminary injunction amounts to a failure of due process as to High Hill Ranch LLC, which is a party to this action and participated in the arguments leading to the issuance of the injunction, but was not a party to the 2010 arbitration which led to the 2011 Award.

The Court notes that High Hill Ranch LLC has relied upon the close agency relationship with its individual principals to its advantage in earlier stages of this litigation. This Court previously considered the issue of High Hill Ranch LLC’s relationship to the individuals who were parties to the arbitration and who operated a proprietorship under the business name “High Hill Ranch” prior to the formality of incorporation. High Hill Ranch LLC was served with the Summons and Complaint in this action on February 3, 2022. On March 11, 2022, High Hill Ranch LLC filed a motion to compel arbitration in lieu of answering the Complaint. Plaintiffs objected to High Hill Ranch’s motion to compel arbitration at that time because the LLC had not been a party to the arbitration. The Court noted the close identity of the individuals George and Jerry Visman in relation to the LLC in deciding that the LLC had a right to move to compel arbitration despite the fact that it was not a party to the arbitration:

The court takes judicial notice of the records of the California Secretary of State concerning High Hill Ranch, LLC that the LLC was registered with the Secretary of State on April 22, 2011, prior to High Hill Ranch agreeing to confirmation of the arbitration award and entry of the award as a judgment in PCL-201100390 wherein the parties agreed that High Hill Ranch would be bound by confirmation of that award. The court further takes judicial notice of the records of the Secretary of State that defendant Jerry Visman is the sole member of the LLC, agent for service of process, and CEO, as reflected in the statement of information on the LLC on file with the Secretary of State. Defendant High Hill Ranch, LLC is at the very least a mere continuation of the High Hill Ranch proprietorship. Although defendants concede in the reply that defendant High Hill Ranch, LLC is not a signatory to the arbitration agreement and seek to move forward with arbitration between the plaintiff and defendant Visman with a stay of further

proceedings in the case, defendant High Hill Ranch, LLC is allegedly the agent of all other defendants, including signatory defendant Visman, and, therefore, is entitled to move to compel arbitration.

Tentative Ruling dated March 11, 2022, page 25, Plaintiff's Request for Judicial Notice No. 5.

Having used this agency relationship to its advantage in earlier stages of this litigation, High Hill Ranch LLC is not well positioned to argue that it is innocent of any knowledge of the substance of the 2011 Award.

If in fact High Hill Ranch LLC has been taken completely by surprise as to the contents of Exhibit B of the 2011 Award, the omission is not substantively significant or prejudicial to High Hill Ranch LLC. Although the preliminary injunction failed to attach the entirety of the 2011 Award by omitting Exhibit B, the only legal effect of Exhibit B was to deny Plaintiff's request to have "the green fence" removed. In other words, Exhibit B renders a decision that is in High Hill Ranch LLC's favor and requires no further action by either party. *See also*, Declaration of Frances Reinders, dated April 5, 2026, para. 29-35.

Material Change

High Hill Ranch LLCs second argument in favor of dissolving the injunction is that there has been a material change based on a 2014 easement agreement between High Hill Ranch LLC and Plaintiffs that it claims has invalidated the 2011 Award by realigning the easement that was in effect at the time of the 2011 Award. Defendants' motion was brought in 2026, four years after the preliminary injunction was issued, twelve years after the 2014 easement agreement was executed and fifteen years after the formation of the LLC, but only two months before the Order to Show Cause hearing scheduled to consider whether Defendants have violated the terms of the injunction.

The 2014 easement agreement, Defendants' Request for Judicial Notice No. 2, states that it is entered into "for the purpose of modifying the location of an easement previously granted . . . to accommodate an existing grantor encroachment" It does not reference the 2002 Settlement Agreement or the 2011 Award or in any way discuss, much less alter, the detailed operational arrangements between the parties for the management of vehicular and pedestrian access and signage within the easement.

Plaintiffs deny that the 2014 Agreement supercedes the prior 2002 Settlement Agreement or the 2011 Award. In support of this position, Plaintiffs make the following observations through the Declaration of Frances Reinders, dated April 5, 2026 ("Reinders Declaration"):

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1. The 2014 Agreement does not state that it supercedes the 2011 Award or the 2002 Settlement Agreement, nor did the parties orally agree that it would do so. Reinders Declaration, para. 38.
2. Defendants have never argued that the 2014 Agreement supercedes the 2011 Award or the 2002 Settlement Agreement before the instant motion was filed. Id. at para. 39.
3. The 2014 Agreement only adjusts the configuration of the easement pathway to avoid further conflict associated with an encroaching structure on the original footprint of the easement. This issue was discussed in correspondence from Defendants' counsel between 2011 and 2014. Id. at para. 40, Exhibit E.

The preliminary injunction was requested and granted in order to ensure access of Plaintiff's landlocked commercial establishment for Plaintiffs, their vendors and their clientele. Both the 2010 arbitration and this 2021 lawsuit were initiated because the actions of Defendants consistently impeded this access. If the preliminary injunction is dissolved on the grounds that the 2011 Award has been superceded there will be no legal impediment to Defendants resuming the conduct that has led to decades of conflict between the parties and that has prevented Plaintiffs from freely accessing their property. The matter has been stayed pending the outcome of arbitration. Until that arbitration is concluded the Court does not perceive that Defendants have articulated any reason to change the status quo, and elects to preserve the positions of the parties by maintaining the preliminary injunction.

TENTATIVE RULING #9: BOTH PARTIES' REQUESTS FOR JUDICIAL NOTICE ARE GRANTED. DEFENDANTS' MOTION TO DISSOLVE THE PRELIMINARY INJUNCTION IS DENIED.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 621-6551 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999).

NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY TELEPHONE OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; EL DORADO COUNTY LOCAL RULE 8.05.07. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.

LONG CAUSE HEARINGS MUST BE REQUESTED BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED AND THE PARTIES ARE TO PROVIDE THE COURT WITH THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. LONG CAUSE ORAL ARGUMENT REQUESTS WILL BE SET FOR HEARING ON ONE OF THE THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. THE COURT WILL ADVISE THE PARTIES OF THE LONG

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**CAUSE HEARING DATE AND TIME BY 5:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED.
PARTIES MAY PERSONALLY APPEAR AT THE HEARING.**